

**TENTATIVE RULINGS
DEPARTMENT C11 - LAW AND MOTION CALENDAR**

Judge Jonathan Fish

July 6, 2026

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

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Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If **all** counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless **all** parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

#	Case Name	
1	American Lending Center Holdings Inc. vs. Zhou 2025-01507222	Motion for Sanctions Continued
2	Bowie vs. NuEyes Technologies, Inc. 2025-01501793	Motion to Strike - Anti SLAPP The Court denies Cross-Defendants Fraser G. Bowie and The Bowie Group LLC's Anti-SLAPP Motion directed to the cross-complaints of Mark Greget and NuEyes Technologies, Inc. found in ROA 31 and 34. The pleadings at issue are entitled "Defendant Mark Gregret's First Amended Answer To Plaintiffs' Unverified Complaint For Damages And Declaratory Relief; And Counterclaims" and "Defendant NuEyes Technologies, Inc.'s Answer To Plaintiffs' Unverified Complaint For Damages And Declatory Relief; And Counterclaims". <u>Legal Standard</u> Code Civ. Proc. §425.16 provides in relevant part: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." This section is to be construed broadly. Cal. Code Civ. Proc. § 425.16(a). The court's determination of an anti-SLAPP motion is a two-step process. First, the court determines if the party moving to strike a cause of action has met its initial burden to show that the cause of action arises from an act in furtherance of the moving party's right of petition or free speech. Then, if the court determines that showing has been made, the court determines whether the opposing party has demonstrated a probability of prevailing on the claim. <i>Navelier v. Sletten</i> (2002) 29 Cal.4th 82, 88.

Step one: “At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached.” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.)

There are four categories of protected speech for an anti-SLAPP motion (Code Civ. Proc. § 425.16(e)(1)-(4)):

1. statements made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law;
2. statements made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law;
3. statements made in a place open to the public or a public forum in connection with an issue of public interest; or
4. any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

Defendants do not need to show that an entire cause of action is subject to the anti-SLAPP statute, but rather “each act or set of acts supplying a basis for relief, of which there may be several in a single pleaded cause of action—to determine whether the acts are protected.” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.App.5th 995, 1010.)

Allegations of protected activity supporting stricken causes of action must be eliminated from the complaint unless they also support a distinct cause of action on which the plaintiff has shown a probability of prevailing. (*Baral v Schnitt* (2016) 1 Cal.5th 376, 396; *Sheley v Harrop* (2017) 9 Cal.App.5th 1147, 1175.)

A defendant meets its burden by showing that the act underlying the claim fits one of the categories enumerated in CCP § 425.16(e). (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396—at first step, defendant has “burden of identifying all allegations of protected activity, and the claims for relief supported by them”; *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.)

Step two: If the moving defendant meets his initial burden, the burden shifts to the plaintiff and the plaintiff must demonstrate that the complaint is both legally sufficient and supported by a *prima facie*

showing of facts to sustain a favorable judgment. (*Premier Med. Mgt. Systems, Inc. v. California Ins. Guar. Ass'n* (2006) 136 Cal.App.4th 464, 472.) Whether a complaint could be amended to state a valid claim is immaterial. (*Id.*) The “probability of prevailing” standard is the same standard governing a motion for summary judgment, and it is plaintiff’s burden to show facts that would support a judgment in plaintiff’s favor. (*Kyle v. Carmon* (1999) 71 Cal.App.4th 901, 907.)

In opposing a SLAPP motion, plaintiff must present admissible evidence and cannot rely on the allegations in its complaint. (*Roberts v. Los Angeles County Bar Ass'n* (2003) 105 Cal.App.4th 604, 613-614.) Affidavits or declarations “on information and belief” are hearsay and inadmissible evidence to show a probability that plaintiff will prevail. (*Evans v. Unkow* (1995) 38 Cal.App.4th 1490, 1497.)

“Only a cause of action that satisfies both prongs of the anti-SLAPP statute-i.e., that arises from protected speech or petitioning *and* lacks even minimal merit-is a SLAPP, subject to being stricken under the statute.” (*Navellier v. Sletten* (2002) 29 Cal. 4th 82, 89.)

In prong one, “the focus of the statute is not the form of plaintiff’s cause of action, but the defendant’s activity that gives rise to the asserted liability.” (*Midland Pacific Bldg. Corp. v. King* (2007) 157 Cal.App.4th 264, 272.) The statute identifies four categories of protected petitioning and free speech activities. (Civ. Proc. Code § 425.16, subd. (e)(1) to (4).) The law expressly provides that it “shall be construed broadly [Civ. Proc. Code § 425.16, subd. (a)] to encourage participation in free speech and petition activities.” (*Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi* (2006) 141 Cal.App.4th 15, 22.)

Where the motion to strike is directed to the entire complaint, the trial court must deny the motion if there is any claim that does not arise from protected activity. The burden is on the moving party to identify the specific claims it seeks to strike. “This is crucial because complaints frequently include claims arising from protected activity alongside claims arising from unprotected activity, as well as ‘so-called’ mixed causes of action that combine the two. (*Park v. Nazari* (2023) 93 Cal.App.5th 1099, 1107-1109, (quoting *Baral v. Schnitt* (2016) 1 Cal.5th 376, 381)—“If a defendant wants the trial court to take a surgical approach, whether in the alternative or not, the defendant must propose where to make the incisions”]

If the motion seeks to strike discrete allegations within a cause of action, the notice of motion should make that clear; and the moving papers should set forth “exactly what factual allegations it wishes to have stricken, in a table or chart showing exactly how each such

allegation aligns with elements of the cause of action or causes of action the motion attacks.” (*Young v. Midland Funding LLC* (2023) 91 Cal.App.5th 63, 100, fn. 15.)

Merits

Here, the Bowie parties argue that both Counterclaims should be stricken; the Notice of Motion and Memorandum of Points and Authorities fails to identify any specific language or claims.

NuEyes alleges the following three counterclaims against Bowie: breach of contract – NDA; misappropriation of trade secrets; and unfair competition.

Greget alleges the following counterclaims against Bowie: defamation per se – false accusation of drug use; defamation per se – false accusation of embezzlement/misappropriation; intentional infliction of emotional distress; and negligent infliction of emotional distress. While the Court sustained part of the demurrer to the Greget’s Counterclaim, no amended pleading has been filed.

Instead, the crux of the argument in the Motion is that the pleadings are “retaliatory” and impinge on his free speech under Code of Civil Procedure section 425.16, subdivision (e)(2).

The Bowie parties argue that where liability is based on speech itself, the claim necessarily arises from protected activity. (Motion, p. 3:2-21.)

This assertion is inaccurate.

FilmOn.com v. DoubleVerify, Inc. (2019) 7 Cal.5th 133, 246 directs courts applying section 425.16, subdivision (e)(4) to evaluate whether the alleged wrongful statements contributed to a public discussion or conversation on the issue, and in conducting this inquiry to evaluate the specific context in which the statements were made. Under this test, some alleged defamatory statements that are not made in connection with a public conversation or discussion of the issues are not protected by the anti-SLAPP statute. (See also *Murray v. Tran* (2020) 55 Cal.App.5th 10, allegedly defamatory statements about a dentist's malpractice by a former business partner of the dentist to the dentist's new employer were protected. We concluded these statements had a sufficient nexus to the public issue of protecting dental patients from sub-standard care and “promoted the public conversation on that issue because they were made to a person who had direct connection to and authority over the patient population with whom” the dentist cared for. (Id. at p. 35.) As in *FilmOn.com*, the

communications “never entered the public sphere, and the parties never intended [them] to.” (*FilmOn.com, supra*, 7 Cal. 5th at p. 153.)

But here, instead of looking at the fourth catch-all category, Bowie argues that the alleged defamatory statements are statements made in connection with anticipated or actual litigation are protected under Code of Civil Procedure section 425.16, subdivision (e)(2).

The ONLY basis for this assertion is the sequence of events, i.e. that Greget only raised these issues after Bowie asserted wage claims.

A cross-complaint may be subject to an anti-SLAPP motion based on the plaintiff's right to petition. (*Takhar v. People ex rel. Feather River Air Quality Management Dist.* (2018) 27 Cal.App.5th 15, 24, 237 Cal.Rptr.3d 759.) However, such a cross-complaint must allege a cause of action **arising from the plaintiff's act of filing the complaint itself**. (*Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1373-1374.) That is, a cross-complaint will ordinarily not be considered a SLAPP suit because a cross-complaint usually arises from the underlying dispute alleged in the complaint, and not out of the litigation process itself; a defendant's oppressive litigation tactics alone will not trigger a dismissal under the anti-SLAPP statute. (*Kajima Engineering & Construction, Inc. v. City of Los Angeles* (2002) 95 Cal.App.4th 921, 933-934; *Third Laguna Hills Mutual v. Joslin* (2020) 49 Cal.App.5th 366, 371–372, after a homeowner's association filed a complaint alleging that a homeowner violated its covenants, the homeowner's cross-complaint alleging that the HOA prevented him from renting his home was not anti-SLAPP protected because the cross-complaint arose from the HOA's “alleged tortious acts, but not from the HOA's protected act of filing a complaint.”)

Here, the allegations date back to conduct from October 2023 and involve separate bad acts by Bowie that have nothing to do with the filing of his Complaint or seeking relief for his own wage-related claims. (See Greget Counterclaims, ¶¶39-42, 50-58; NuEyes Counterclaims, ¶¶78, 82-88, 93.)

The Bowie parties have not met their burden under the first step of this analysis.

Thus, the Motion is denied.

Now that the Anti-SLAPP has been adjudicated, the Court will address the issue of the combined answers and counterclaims.

		California Code of Civil Procedure section 431.30(c) states plainly that affirmative relief may not be claimed in the answer. (CCP § 431.30) The answers and counterclaims must be filed in separate documents. Greget and NuEyes are ordered to file and serve their second amended answer and first amended cross-complaint within 20 days. The Court notes that Greget and NuEyes have a motion for leave to amend pending and The Bowie parties have a motion to strike portions of their answers. Greget and NuEyes have represented that their amendments will resolve some or all of the issues in the Motion to Strike. Greget and NuEyes are permitted to remove/narrow claims and affirmative defenses, fix typos, and add allegations regarding the existing defamation claims by Greget. No additional cross-claims are permitted, only facts supporting existing claims. For Greget, that is only two claims for defamation. (See ROA 90, 94.) The Bowie parties will then have 30 days from service to respond to the first amended cross-complaints. The Court takes off calendar the 7/13/26 Motion to strike and the 11/30/26 Motion for leave to amend as they will be mooted by this Order. The Bowie parties are ordered to serve notice of this ruling.
3	Comer vs. Mercury Insurance Company 2023-01322938	Motion to Reinstate Punitive Damage Allegations and Prayer and Compel Asset Discovery Plaintiff James Comer's Motion to Reinstate Punitive Damage Allegations and Prayer and Compel Asset Discovery is denied. On or about 8/28/24, the Court granted Defendant Mercury Insurance Company's motion to strike punitive damage allegations "without prejudice to Plaintiff bringing a motion to amend after conducting discovery." In doing so, the Court stated: "Plaintiff has not alleged facts showing acts reflecting malice, oppression or fraud that were authorized or ratified by an officer, director, or managing agent of Defendant rather than the conclusions." (ROA 96.) Plaintiff's current motion is denied, because it does not comply with the procedural requirements for a motion for leave to amend. (See Code Civ. Proc. § 473, subd. (a)(1) ["The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend

		any pleading”]; see also Code Civ. Proc., § 576 [“Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order”].) A motion to file an amended pleading must be accompanied by a copy of the <i>proposed amended pleading</i> and state what allegations are proposed to be deleted, or added, if any, and where, by page, paragraph, and line number. (Cal. R. Court 3.1324(a).) It also must include a supporting declaration explaining: “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” (Cal. R. Court 3.1324(b).) This motion is denied without prejudice to Plaintiff filing a proper motion for leave to amend. Defendant shall give notice of the ruling.
4	Deharo vs. Kola Hotel, LLC 2024-01419171	Motion to Compel Deposition (Oral or Written) Plaintiff Almadelia Deharo’s (“Plaintiff”) motion to compel the deposition of Defendant Vagabond Inn Corporation’s (“Defendant”) person(s) most qualified is granted in part and denied in part. The request for an order compelling the deposition of Defendant’s person most qualified, with production of documents, is denied as moot, because Defendant produced its witnesses for deposition after this motion was filed, but before this motion was heard. To the extent Plaintiff is not satisfied with the answers or objections given at the deposition(s), her remedy is to bring a motion to compel under CCP section 2025.480. The Court cannot provide relief that was not requested in the notice of <i>this</i> motion. (<i>Luri v. Greenwald</i> (2003) 107 Cal.App.4th 1119, 1125.) The request for an award of sanctions is granted. (Code Civ. Proc., § 2025.410, subd. (d).) The Court finds Plaintiff reasonably waited for several months for Defendant to produce its witnesses before bringing this motion; and, that Plaintiff’s counsel made several attempts to informally resolve this motion before it was filed. In connection with the motion, Plaintiff is awarded reasonable sanctions in the amount of \$3,000 against Defendant Vagabond Inn Corporation. The sanctions are payable within 30 days to The Garza Firm. Plaintiff is ordered to give notice of the ruling.

5	Doe vs. Boys & Girls Club Of Central New Mexico 2022-01296308	Motion for Leave to File Cross Complaint The unopposed Motion for Leave to File a Cross-Complaint brought by Defendant Dominic Yannoni is GRANTED, pursuant to Code of Civil Procedure section 428.50, subdivision (c). Defendant shall separately file and serve the proposed Cross-Complaint, within 10 days of this order. Defendant Dominic Yannoni seeks leave to file a Cross-Complaint against Boys & Girls Club of Central New Mexico, which seeks: (1) Implied Contractual Indemnity; (2) Equitable Indemnity; (3) Failure to Defend; (4) Declaratory Relief; and (5) Apportionment of Fault. (¶9 of Marchiondo Declaration and Exhibit A thereto.) The proposed Cross-Complaint specifically identifies the instant action and asserts the proposed Cross-Defendant shares liability for the injuries sustained by Plaintiff, to the extent those injuries arise from Plaintiff's negligence claims. (¶1, ¶7, ¶17-¶18, ¶23-¶24, ¶28 and ¶38 of Proposed Cross-Complaint [Exhibit A of Marchiondo Declaration.]) The Proposed Cross-Complaint additionally alleges a duty to defend, within this action. (<i>Id.</i> at ¶28.) "Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action." (<i>Time for Living, Inc. v. Guy Hatfield Homes/ All American Development Co.</i> (1991) 230 Cal.App.3d 30, 38.) "An indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrence or series of occurrences as asserted by the plaintiff." (<i>Id.</i> at p. 39.) Based on the above, the proposed pleading qualifies for leave pursuant to Code of Civil Procedure section 428.10, subdivision (b)(1). Additionally, as no prejudice has been shown, the Court finds that leave to plead serves the interest of justice. (Code Civ. Proc., § 428.50, subd. (c).) Defendant to give notice.
6	Espinoza vs. Nissan North America, Inc.	Motion to Compel Production Defendant Nissan North America, Inc.'s motion to compel the inspection of Plaintiff Gabriel Espinoza's vehicle is denied.

	2024-01428549	Code Civ. Proc., § 2031.010(a) provides that “[a]ny party may obtain discovery ... by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action.” The motion is brought pursuant to Code Civ. Proc., § 2031.310, which states in part, <u>“[o]n receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand...”</u> (Emphasis added.) Defendant acknowledges in its motion that it never served a notice/request for inspection pursuant to Code Civ. Proc., § 2031.010 et seq. (Rabin Decl., ¶ 6.) Despite this, Defendant complains that Plaintiff’s counsel has not produced the subject vehicle for inspection and seeks to compel the same. Because Defendant is seeking the inspection, the onus is on Defendant to propound an actual inspection demand per the code on Plaintiff. Code Civ. Proc., § 2031.030 specifies the form and content of the demand, and § 2031.040 prescribes the method for service. While this concerns inspection of a vehicle, as opposed to documents, the procedure is the same. The motion is denied. Given that Defendant never served an inspection demand, there is nothing to compel a response to, under Code Civ. Proc., § 2031.310. Plaintiff shall give notice.
7	Fisher vs. Ford Motor Company 2024-01450044	Motion for Summary Judgment and/or Adjudication Defendant Ford Motor Company’s motion for summary adjudication on the first, second, third, and sixth causes of action asserted against it in plaintiff Jeffrey Fisher’s first amended complaint (“FAC”) is denied. Defendant Lincoln South Coast’s motion for summary judgment on the fifth cause of action for negligent repair asserted in the FAC – the only cause of action directed against Lincoln South Coast – is denied. Purportedly, the motion for summary adjudication and judgment was personally served on Plaintiff’s counsel. But the only proof of service provided is by an employee of Defendants’ counsel who arranged for

		such service but did not do it herself. [See POS at ROA #86.] This is insufficient. Service may be made on a party's attorney by leaving the papers with a receptionist or anyone in charge of the office. If there is no one with whom to leave the papers, they may be left in a conspicuous place in the office between the hours of 9:00 a.m. and 5:00 p.m. [CCP § 1011(a); see <i>National Advertising Co. v. City of Rohnert Park</i> (1984) 160 CA3d 614, 618-619, 206 CR 696, 698] (a) [9:85.1] Proof of service: A declaration of personal service is required by the person delivering the documents. FORM: Proof of Personal Service—Civil (Judicial Council form POS-020). ⇒ [9:85.2] PRACTICE POINTER: If you are going to use a messenger to serve documents on opposing counsel or parties, the proof of service must be <i>by the messenger</i>. A declaration signed by a secretary who gave the papers to the messenger is hearsay and not sufficient. For the same reason, a declaration by the attorney (e.g., “I caused to be delivered by hand”) is likewise insufficient. If you are relying on personal service, the <i>person who actually served</i> the document must sign the proof of service. Cal. Prac. Guide Civ. Pro. Before Trial Ch. 9(I)-B, §§ 9:85-85.2. The proof of service indicates that “if required” the proof of service by the messenger will be filed. It is required. But it has not been filed. Proof of service is to be filed no later than five court days before the hearing. CRC 3.1300(c). Plaintiff has not responded to the motions, which also raises questions about service. Accordingly, in the absence of proof of service of the motion on Plaintiff and any response by Plaintiff showing that he was served, the motion for summary adjudication and summary judgment is denied. Moving party to give notice.
8	Grace vs. CBRE Capital Markets, Inc	Motion to Strike Motion for Summary Adjudication

	2023-01314705	Plaintiff Bethany Grace’s (“Plaintiff”) Motion to Strike Defendants CBRE Capital Markets, Inc. and Troy Tegeler’s (collectively “Defendants”) Motion for Summary Adjudication is denied. Plaintiff moves, under CCP sections 436, 437c and 1008, for an order striking Defendants’ “renewed Motion for Summary Adjudication of Claims 4, 5, 7, 9, and 10” (the “MSA”). (ROA 706.) CCP section 435, which addresses motions to strike, specifically limits a motion to strike to a “pleading,” which is defined to mean “a demurrer, answer, complaint, or cross-complaint.” (Code Civ. Proc., § 435, subd. (a).) In turn, CCP section 436 provides the court with authority to strike out “any irrelevant, false, or improper matter inserted in <i>any pleading</i>” or “all or any part of <i>any pleading</i> not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436 [emphasis added].) Here, the MSA is not a “demurrer, answer, complaint or cross-complaint.” Thus, it would not be appropriate for the court to strike the MSA under CCP section 436. Whether the MSA constitutes an improper motion for reconsideration shall be decided in ruling on the MSA. (See <i>Patterson v. Sacramento City Unified School Dist.</i> (2007) 155 Cal.App.4th 821, 827 [“To determine whether a second summary judgment motion is proper, courts consider whether it involves ‘newly discovered facts or circumstances or a change of law’”]; accord <i>Bagley v. TRW, Inc.</i> (1999) 73 Cal.App.4th 1092, 1097 [holding second motion for summary judgment or adjudication was “statutorily barred” after comparing the evidence submitted with the first motion to the evidence submitted with the second motion and finding that the moving party did not show any newly discovered facts, circumstances, or law].) Accordingly, Plaintiff’s motion to strike is denied. The MSA remains on calendar for 10/12/26 at 1:30 PM. Defendants shall give notice of the ruling.
9	McPherson vs. Donald & Lynn Southard, LLC 2025-01494975	Motion to Quash Service of Summons-Southard Parties Here, Moving Parties take issue with the fact that the Trusts were not properly served. Unlike a corporation, a trust is not a legal entity — it is simply a fiduciary relationship with respect to property. Legal title to property owned by a trust is held by the trustee, and a trust is simply a collection of assets and liabilities. (<i>Stoltenberg v. Newman</i> (2009) 179

Cal.App.4th 287, 294; *Greenspan v. LADT, LLC* (2010) 191 Cal.App.4th 486, 521.)

The real party in interest in litigation involving a trust is always the trustee. (*Presta v. Tepper* (2009) 179 Cal.App.4th 909, 914.) California Code of Civil Procedure § 369 expressly authorizes a trustee of an express trust to sue without joining the beneficiaries as parties (CCP § 369)[6], confirming that the trustee — not the trust — is the proper litigation representative. As a general rule, the trustee is the real party in interest with standing to sue and defend on the trust's behalf. (*Portico Management Group, LLC v. Harrison* (2011) 202 Cal.App.4th 464.)

Here, this Motion challenges service; Donald Southard and Lynn Southard appear as trustees for both Trusts to argue that service is improper.

As to Don and Lynn Southard Trust Dated April 19, 2007, Plaintiff filed a Proof of Service indicating that the trust was **sub-served** on 12/1/25 at 12:30 p.m. at 1856 N Glenview Ave, Anaheim, CA 92807 on an unnamed individual who “appeared to be a gray-haired white male contact 55 - 65 years of age, 5'8"-5'10" tall and weighing 180-200 lbs.” (ROA 18.) There appears no dispute that this was Don Southard.

An attempt at subservice actually resulted in personal service.

Thus, as to the Don and Lynn Southard Trust Dated April 19, 2007, the Motion is denied. The Proof of Service indicates that a Trustee was in fact personally served.

Thus, the Motion is denied as to Don and Lynn Southard Trust Dated April 19, 2007.

As to the Southard Family Trust Dated December 13, 2022, Plaintiff filed a Proof of Service indicating that the trust was **personally served** on 11/28/25 at 2:31 p.m. at 1856 N Glenview Ave, Anaheim, CA 92807 on an unnamed individual who “appeared to be a brown-haired white female contact 55-65 years of age, 5'6"-5'8" tall and weighing 120-140 lbs.” (ROA 14.)

In support of the Motion, the Southards provide testimony of Charlotte Cone, who says that she was a guest staying at the home of Donald and Lynn Southard at 1856 North Glenview Ave. in Anaheim on 11/28/25. She opened the door and was handed papers. (Cone Decl.,

¶¶1-2.) She testifies that she resides in Seal Beach, California and not at the address served in Anaheim. (Cone Decl., ¶3.)

The Trustees reason that she did not reside at the property and thus could not have been served by substitute service.

The Motion is granted as to the Southard Family Trust Dated December 13, 2022 because Plaintiff has not shown that it served one of the Trustees personally as indicated in the Proof of Service.

Moving parties are ordered to serve notice of this ruling.

Motion to Quash Service of Summons – NAI

NAI Capital Commercial, Inc. (NAI) moves to quash service of the Summons and Complaint (ROA 12) made to “NAI Capital” at 15821 Ventura Blvd Ste 320, Encino, CA 91436.

The request for judicial notice is granted.

NAI argues that the Complaint also does not mention NAI Capital Commercial Inc., instead naming the party as “NAI Capital” (See e.g. Complaint, ¶12.)

NAI points to the Complaint to argue that “In fact, the Complaint contains no allegations any specially appearing non-party NAI.” (Motion., p. 6:8-9.)

But the Complaint specifically identifies this Defendant as engaging in transactions in “commercial real estate sales and lease, including the sale and lease of industrial property in Orange County, California and that it is the company with which Defendant Paul Fisher was associated and assisted in brokering at time the Southard LLC sold the Property in or about mid-year 2022.” (Compl., ¶12.) Paul Fisher was also with NIA Capital at the time of the trial in February-March 2020 and therefore knew of the allegations and that those allegations had been proven before the Court.” (Compl., ¶40; see also ¶47.)

There is no declaration provided from the entity; rather, Counsel provides the already filed Summons and Complaint. (Kenney Decl., ¶2.)

The lease attached to the Complaint eliminates any genuine uncertainty about the identity of the business that Plaintiff intended to sue. (See Compl, Exh. A.) It specifically identifies “NAI Capital

		Commercial, Paul Fisher” as the dual agent as “NAI Capital Commercial”. Importantly, NAI provides no legal authority on point to show that a typo in its name rendered it unaware that it is the property entity in this case. (See e.g. <i>Sakaguchi v Sakaguchi</i> (2009) 173 Cal.App.4th 852, 861–862.) On Reply for the first time, NAI argues that there are actually two different entities and thus the naming issue is not a minor typo. NAI says that “NAI Capital, Inc. (that brokered the Lease originally) filed for bankruptcy in 2020. NAI Capital Commercial, Inc. purchased NAI Capital, Inc.’s assets free and clear out of bankruptcy via Bankruptcy Court order. That NAI Capital Commercial, Inc. brokered later transactions regarding property that was not subject to any lis pendens and had no disposition restriction on title...” (Reply, p. 3:6-16.) But these “facts” are not supported by any evidence (not even properly provided sworn testimony), and this argument is made for the first time on reply. Based on the judicially noticed documents and the opposition papers, the Court finds that service is proper. This is the only issue before the Court. The Motion is denied. NAI Capital Commercial Inc. shall give notice of this ruling.
10	Pelagio vs. County of Orange 2022-01292229	Motion for Summary Judgment and/or Adjudication Court will hear argument.
11	Salvador vs. City of Santa Ana 2025-01463617	Demurrer to Amended Complaint Court will hear argument Case Management Conference – remains on calendar
12	Takahashi vs. American	Motion to Compel Deposition (Oral or Written)

	Honda Motor Co., Inc.	
	2024-01384148	Continued
13	To vs. Dinh 2025-01517640	Demurrer to Cross-Complaint / Motion to Strike Portions Of Cross-Complaint The unopposed demurrer of cross-defendants Minh Cong To aka Minh Cong and Bau Tran to the cross-complaint of cross-complainants Elite Modern Builders, LLC and Duy Lap Le is sustained with 15 days leave to amend. Cross-Defendants’ motion to strike portions of the cross-complaint is therefore moot. Service of the demurrer was timely and good. No opposition was filed. Failure to oppose the demurrer may be construed as having abandoned the claims. <i>See Herzberg v. County of Plumas</i> (2005) 133 Cal. App. 4th 1, 20 (“Plaintiffs did not oppose the County’s demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue.”); <i>Quantum Cooking Concepts, Inc. v. LV Associates, Inc.</i> (2011) 197 Cal.App.4th 927, 934 (trial court was justified in denying post-trial motions for failure to provide adequate memorandum; “Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide.”). Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported. CRC 3.1113(a). Motion to Strike Given the recommendation to sustain the demurrer, the motion to strike is moot. Otherwise, the motion to strike may be granted with leave to amend on the same basis. Moving Party to give notice.